

SUPREME COURT FOR THE STATE OF NEW YORK
KINGS COUNTY

-----X
MICHAEL WILDS,

Plaintiff,

Index No.:

-against-

SUMMONS

THE CITY OF NEW YORK; MAYOR OF THE CITY OF
NEW YORK ERIC ADAMS; NYPD POLICE
COMMISSIONER KEECHANT SEWELL; NYPD
DETECTIVE SHALIMAR SCRIBNER (Badge No.
20375, Tax No. 959420); NEW YORK CITY
ADMINISTRATION FOR CHILDREN'S SERVICES
COMMISSIONER JESS DANNHAUSER; NEW YORK
CITY ADMINISTRATION FOR CHILDREN'S
SERVICES DEPUTY COMMISSIONER OF YOUTH
AND FAMILY JUSTICE NANCY GINSBURG; and
NEW YORK CITY POLICE DEPARTMENT MEMBER
DOES #1-10,

Plaintiff designates
KINGS COUNTY
as the Venue and
place of trial.

The basis of Venue is
that a substantial part
of the conduct giving
rise to this Complaint
occurred in Kings
County.

Defendants.

-----X
TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to
serve a copy of your Answer on the plaintiff's attorney within 20 days after the service of this
Summons, or within 30 days after service of this Summons is complete if this Summons is not
personally delivered to you within the State of New York.

In case of your failure to Answer this Summons, a judgment by default will be taken
against you for the relief demanded in the complaint, together with the interest, costs and/or
disbursements of this action.

Dated: Brooklyn, New York
July 11, 2024

KAISHIAN & MORTAZAVI LLC
Attorneys for Plaintiff

By: 
Sayed Masoud Mortazavi, Esq.

TO:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

MAYOR OF THE CITY OF NEW YORK ERIC ADAMS
100 Church Street
New York, NY 10007

NYPD POLICE COMMISSIONER KEECHANT SEWELL
(Former)
New York City Police Department
1 Police Plaza
New York, New York 10038

NYPD DETECTIVE SHALIMAR SCRIBNER
(Badge No. 20375, Tax No. 959420)
New York City Police Department 83rd Precinct
480 Knickerbocker Ave,
Brooklyn, NY 11237

NEW YORK CITY POLICE DEPARTMENT MEMBER DOES #1-10.
COMMISSIONER JESS DANNHAUSER
Administration For Children's Services
150 William Street, New York, NY 10038

-and-

DEPUTY COMMISSIONER OF YOUTH AND FAMILY
JUSTICE NANCY GINSBURG
Administration For Children's Services
150 William Street, New York, NY 10038

SUPREME COURT FOR THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MICHAEL WILDS,

Plaintiff,

Case No.:

-against-

THE CITY OF NEW YORK; MAYOR OF THE CITY OF
NEW YORK ERIC ADAMS; NYPD POLICE
COMMISSIONER KEECHANT SEWELL; NYPD
DETECTIVE SHALIMAR SCRIBNER (SHIELD
#20375); NEW YORK CITY ADMINISTRATION FOR
CHILDREN'S SERVICES COMMISSIONER JESS
DANNHAUSER; NEW YORK CITY
ADMINISTRATION FOR CHILDREN'S SERVICES
DEPUTY COMMISSIONER OF YOUTH AND FAMILY
JUSTICE NANCY GINSBURG; and NEW YORK CITY
POLICE DEPARTMENT MEMBER DOES #1-10,

VERIFIED
COMPLAINT

**PLAINTIFF DEMANDS
A TRIAL BY JURY**

Defendants.
-----X

Plaintiff, Michael Wilds, by his attorneys, KAISHIAN & MORTAZAVI LLC, by
MARYANNE K. KAISHIAN, ESQ., an attorney duly licensed to practice before the United States
District Court for the Eastern District of New York, hereby complains of Defendants as follows:

PRELIMINARY STATEMENT

1. On December 8, 2022, Plaintiff Michael Wilds, a resident of Kings County, City
and State of New York, was falsely charged with possession of a weapon, assault, and various
other charges. From the outset of the investigation, Defendant NYPD Members were aware that
Mr. Wilds was not the perpetrator of the alleged crimes through the evidence available to them,
including exculpatory statements obtained from two witnesses, including the victim, and physical
evidence recovered at the scene. This evidence readily identified a 27-year-old man who was said

to have accidentally discharged the weapon in question, and none of which pointed to Mr. Wilds as the perpetrator of the allegations levied against him.

2. Nevertheless, Defendants arrested and falsely charged Mr. Wilds. As a result, Mr. Wilds was wrongfully incarcerated at the Crossroads Juvenile Detention Center in Kings County for approximately five (5) days.

3. The case against Mr. Wilds terminated in his favor when it was dismissed and sealed in its entirety on April 12, 2023.

4. Mr. Wilds now brings the instant case before this Court for, *inter alia*, malicious prosecution, interference with his right to a fair trial, deficient conditions of confinement, and fabrication of evidence.

PARTIES

5. At all relevant times mentioned herein, Plaintiff **MICHAEL WILDS** was a resident of Kings County, City, and State of New York.

6. At all relevant times mentioned herein, Defendant **CITY OF NEW YORK** (“Defendant City” or “New York City”), was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including, but not limited to, the New York City Police Department (“NYPD”), and their employees.

7. Defendant New York City Mayor **ERIC ADAMS** was at all times relevant to this Complaint, the Mayor of New York City. As Mayor, Defendant Adams, at all relevant times, was an elected officer and the “chief executive officer of the city,” New York City Charter § 3, and had final authority to appoint and/or remove any NYPD employees and agents, including the New York City Police Commissioner. He is sued individually and in his official capacity.

8. Defendant NYPD Commissioner **KEECHANT SEWELL** was at all times relevant to this Complaint the Police Commissioner of the NYPD. As Police Commissioner, Defendant Sewell, personally and/or through her authorized delegates, at all relevant times had final authority to promulgate and implement administrative and managerial policies and procedures, including policies and procedures as to personnel hiring, training, supervision, and discipline with respect to NYPD officers' performance of their duties, and constituted a City policymaker for whom the City is liable. She is sued individually and in her official capacity.

9. Defendant ACS Commissioner **JESS DANNHAUSER** ("Defendant Dannhauser") was at all times relevant to this Complaint, the Commissioner for the New York City Administration for Children's Services. As ACS Commissioner, Defendant Dannhauser, personally and/or through his authorized delegates, at all relevant times, had final authority to promulgate and implement administrative and managerial policies and procedures, including policies and procedures as to personnel hiring, training, supervision, and discipline with respect to ACS staff members, including but not limited to Deputy Commissioner Of Youth And Family Justice **NANCY GINSBURG** ("Defendant Ginsburg"), performance of their duties. As Deputy Commissioner, Defendant Dannhauser is responsible for staffing determinations, including filling vacant positions and enforcing policies against staff absenteeism. Defendant Dannhauser constituted a City policymaker and an agent and/or employee for whom the City is liable. He sued individually and in his official capacity.

10. Defendant **NYPD DETECTIVE SHALIMAR SCRIBNER** (Badge No. 20375, Tax No. 959420) ("Defendant Scribner"), at all times hereinafter mentioned, was employed by the City of New York as police officer with the NYPD and was assigned to the NYPD's 83rd Precinct in Kings County.

11. The true names and identities of Defendant **NYPD MEMBERS JOHN OR JANE DOES #1 – 10** are currently unknown to Plaintiff, and these Defendants are fictitiously assigned the name(s) “Defendant NYPD Does # 1 – 10” for the purposes of the instant Complaint and pending the ascertainment of their respective true identities. At all times hereinafter mentioned, Defendant NYPD Does # 1 – 10 were employed by the City of New York as members of the NYPD.

12. At all times hereinafter mentioned, all individual Defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the State or City of New York.

13. Each and every act and omission by the individual Defendants alleged herein occurred while said Defendants were acting within the scope of their employment by the Defendant City.

14. The individual Defendants were duly appointed and acting officers, servants, employees, and agents of Defendant City who were acting for, on behalf of, and with the power and authority vested in them by Defendant City and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

15. All Defendants were each and all responsible, in whole and/or in part, for the planning for and/or creation, promulgation, implementation, and/or enforcement of the unconstitutional policies, practices, and/or customs complained of herein, and/or condoned, acquiesced in, adopted, and/or approved of the same, through their acts and/or failures to act, as set forth more fully below.

16. At all times relevant herein, as set forth more fully below, Defendants' actions and/or failures to act were malicious, intentional, knowing, and/or with a deliberate indifference to or a reckless regard for the natural and probable consequences of their acts and/or omissions.

17. Although they were aware of the conduct, present for it, and knew or should have known it was unconstitutional, at no time did any of the Defendants, or any other member of the NYPD, take any steps to intervene in, prevent, or otherwise limit the unconstitutional conduct engaged in by their fellow officers.

18. The conduct of the police officials alleged herein occurred while they were on duty and/or in and during the course and scope of their duties and functions as police officials, and/or while they were acting as agents and employees of Defendant City, cloaked with and/or invoking state power and/or authority, and, as a result, Defendant City is liable to the Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

19. Each individual Defendant is sued in their individual and official capacities.

JURISDICTION and CONDITIONS PRECEDENT

20. This matter is properly before this Court as a majority of the incidents occurring herein took place in Kings County, City, and State of New York.

21. Plaintiff timely served Notices of Claim on the municipal Defendant within ninety (90) days of the accrual of the relevant claims complained of herein and complied with all conditions precedent to commencing an action under New York State law.

22. The damages amount sought by Plaintiff exceeds the jurisdiction of all lower courts.

23. Mr. Wilds was examined by the Defendant City of New York pursuant to GML §50-H, on December 28, 2023.

24. At least thirty days have elapsed since service of Plaintiff's Notices of Claim and adjustment and payment thereof has been neglected or refused.

25. This action was initiated within one year and ninety days of the accrual of all Plaintiff's claims pursuant to New York State law, and within three years of the accrual of all claims brought pursuant to New York City Admin. Code Title 8, Ch. 8 § 8-802, et seq., 42 U.S.C. § 1983, and Federal law.

STATEMENT OF FACTS

26. On or about November 27, 2022, at approximately 12:45 AM, Plaintiff, Michael Wilds, who was 17 years old at that time, was present inside his mother's apartment located inside the premises at 160 Menahan Street, Brooklyn, NY.

27. Also present in the home were a 27-year-old man, referred to herein as J.C., and two 17-year-old minors, both females,.

28. While present in separate room from these4 three individuals, Mr. Wilds heard a gunshot.

29. He entered the room where the shot emanated and saw that one of the minor females, individually referred to herein as "the victim" for privacy purposes, had been shot in the leg.

30. Both minor females indicated that J.C. had accidentally discharged the weapon, striking the victim.

31. J.C. hid the gun and fled the scene.

32. Mr. Wilds assisted the victim in calling 911 and in supporting her as they walked out of the apartment building to meet the ambulance that was on its way.

33. Members of the NYPD, believed to include Detective Shalimar Scribner, and Defendant NYPD Does # 1 – 5, NYPD members believed to be police officers and/or detectives assigned to the 83rd Precinct in Kings County, arrived at the scene in response to the victim's 911 call.

34. Upon information and belief, both eyewitness minor females informed Defendant Scribner and NYPD Member Does # 1 – 5 that the 27-year-old man was the 17-year-old victim's boyfriend, and that this adult individual had possessed and accidentally discharged the weapon.

35. Upon a search of the location, at least one individual among Defendant NYPD Does recovered the gun from inside a bag.

36. Upon information and belief, the bag where the gun was recovered contained J.C.'s identification and personal effects.

37. Mr. Wilds did not possess a gun.

38. Mr. Wilds did not discharge a weapon.

39. Mr. Wilds did not injure the victim.

40. Mr. Wilds, who was also a minor, was traumatized by the shooting. Having ensured medical treatment for the victim and believing that he was no longer needed at the scene, Mr. Wilds left the location to stay with family members.

41. Following the initial statements made by the minor female eyewitnesses, the victim remained in contact with J.C., who was known as the victim's boyfriend.

42. After this contact, in contradiction of the original statements made to police, and against the weight of the available evidence, the victim changed her story to police to exonerate J.C. and implicate Mr. Wilds.

43. This version of events was implausible, removed in time from the incident, and contradicted by other evidence known by and available to NYPD Defendants from the onset of their investigation.

44. Defendant NYPD members were aware of the adult man's apparent relationship with the minor victim and had reason to question this account.

45. From the time of their arrival at the scene, Defendants Scribner and NYPD Does # 1 – 5 were provided with multiple consistent eyewitness accounts.

46. Defendants Scribner and NYPD Does # 1 – 5 quickly recovered the alleged shooter's identification and the weapon, each confirming the eyewitness accounts identifying the 27-year-old man as the accidental shooter.

47. However, this adult individual had evaded arrest, and did not have a last known address.

48. Rather than working to track down this individual, who had known out-of-state contacts, Defendants Scribner and NYPD Does # 1 – 5 generated an internal police-issued "information card," or "i-card," for Mr. Wilds, a minor child, claiming to possess probable cause for his arrest, and falsely accuse him of the shooting.

49. Mr. Wilds became aware of this i-card when police inquired with family members as to his whereabouts.

50. Upon becoming aware of the i-card, Mr. Wilds arranged a scheduled voluntary surrender with the NYPD.

51. Prior to this planned surrender, on or about December 8, 2022, Mr. Wilds was arrested and detained by at least one individual among Defendant NYPD Does # 6 – 10, believed to be NYPD police officers or detectives assigned to the NYPD's 83rd Precinct.

52. At least one of these NYPD Defendants applied handcuffs and while doing so bent, wrenched, twisted, or otherwise hurt Mr. Wilds' shoulders. The handcuffs were applied in an overly tight manner.

53. These NYPD Defendants refused to loosen and/or adjust and/or remove these handcuffs despite Mr. Wilds' requests and repeated complaints of pain, causing additional pain and swelling to both of Mr. Wilds' wrists.

54. Mr. Wilds was held in NYPD custody until his arraignment on December 9, 2022.

55. Defendant NYPD Does # 6 – 10 transported Mr. Wilds from the 83rd Precinct to Brooklyn Central Booking, located at 120 Schermerhorn St. in Kings County by Defendant NYPD Does # 6 – 10, and during transport Mr. Wilds' wrist and shoulder injuries were aggravated.

56. Defendants, including Defendants Scribner and NYPD Does # 1 – 5, were aware, from the onset of their investigation into the shooting incident, of the exculpatory evidence establishing that Mr. Wilds did not commit the alleged criminal activities.

57. Nevertheless, these NYPD Defendants knowingly provided false information to the Brooklyn District Attorney's Office for the purpose of inducing a criminal action against Mr. Wilds.

58. Defendants Scribner and NYPD Does # 1 – 5 fabricated evidence by, *inter alia*: falsely representing the allegations against Mr. Wilds and omitting information regarding the implausibility of these allegations; by failing to reveal contradictory eyewitness reports; by falsely representing the cause for Defendants' arrest of Mr. Wilds; by providing fabricated evidence to prosecutors in the Early Case Assessment Bureau of the Kings County DA's Office; by failing to indicate that Mr. Wilds' arrest was made in the absence of Defendants' ability or will to locate the primary suspect; by fabricating Defendants' narrative of Mr. Wilds' conduct, including in ways

constitutionally tailored to suggest unlawful conduct by Plaintiff and to justify Defendants' unlawful conduct; and by otherwise knowingly presenting false evidence and information likely to influence a jury.

59. On or about December 9, 2022, Mr. Wilds, who has no criminal record, was prosecuted by the Kings County District Attorney's Office based on false information provided by NYPD Does and Defendant Scribner and intended to induce the wrongful criminal action against Plaintiff.

60. At his arraignment in Kings County Supreme Court on or about December 9, 2022, Mr. Wilds was charged with one count each of Penal Law (PL) § 120.05 (Assault in the Second Degree), PL § 265.03(1)(B) (Criminal Possession of a Weapon in the Second Degree), PL § 265.08(1) (Criminal Use of a Firearm in the Second Degree), PL § 120.00(2) (Assault in the Third Degree), and PL § 265.01(1) (Criminal Possession of a Weapon in the Fourth Degree). These charges were eligible for bail or remand.

61. At that time, bail was set at \$7,500.00.

62. Mr. Wilds' family was unable to afford to pay bail or bond.

63. Therefore, Mr. Wilds was transported and detained at the Crossroads Juvenile Detention Center in Kings County, where he spent approximately five (5) days detained.

64. Crossroads Juvenile Detention Center is administered by the CITY and its agents with the Administration for Children's Services.

65. While incarcerated there, Mr. Wilds sustained damages to his physical and emotional well-being.

66. While in the custody of ACS and its agents and/or employees, Mr. Wilds endured overcrowding, the unavailability of sufficient places to sleep, lack of sufficient food, water, and recreation, and the wrongful deprivation of his liberty.

67. After five (5) days, Mr. Wilds' mother and brother were able to post the required 10% bond, effectuating Mr. Wilds' release from Crossroads Juvenile Detention Center on or about December 14, 2022.

68. Mr. Wilds was forced to return to Kings County Supreme Court on approximately four (4) occasions during the pendency of the criminal matter against him.

69. On or about April 12, 2023, the case against Mr. Wilds terminated in his favor with the dismissal of all charges.

Damages

70. Defendants' conduct subjected Mr. Wilds to wrongful incarceration, exposure to the deficient conditions, and further deprived him of his property, and forced him to expend costs, including transportation to and from his court appearances.

71. Defendants' conduct caused Mr. Wilds to experience fear of being assaulted and/or arrested without any justification or cause.

72. Defendants' conduct knowingly exposed Mr. Wilds to the harm of incarceration in Defendant City's custody at Crossroads Juvenile Detention Center, during which time he sustained damages to his physical and emotional well-being.

73. Defendants have greatly interfered with Mr. Wilds' enjoyment and engagement in daily life.

74. Defendants' conduct has caused Mr. Wilds serious pain, suffering, and mental anguish in addition to pecuniary damages.

75. Mr. Wilds has suffered emotional distress and anguish in addition to physical damages, including pain in his wrists, due to Defendants' use of excessive force.

76. The full extent of Mr. Wilds' injuries and damages is not yet known, and their effects are ongoing.

FIRST CLAIM FOR RELIEF

**The Right of Security Against Unreasonable Search and Seizure and Against Excessive Force, Regardless of Whether Such Force Is Used in Connection with a Search or Seizure
Against Defendant City and NYPD Defendants Pursuant to
New York City Administrative Code Title 8, Chapter 8 (§ 8-801, et seq.)**

77. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

78. As described above, the Defendants violated Plaintiff's right to be free from "unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure."

79. Pursuant to NYC Admin. Code Title 8, Chapter 8, §§ 8-801 through 8-809 of the New York City Civil Rights Law, Plaintiff maintains a private right of action against the individual NYPD Defendants and their employer, Defendant City, for this conduct.

80. The NYPD Defendants, as employees of the Defendant City's police department, are "covered individuals" as defined in § 8-801 of this Chapter.

81. Pursuant to § 8-802, *et seq.*, NYPD Defendants and their employer, including Defendant City, are liable to Plaintiff for the conduct described herein.

82. Pursuant to § 8-803, Plaintiff's claims under common law or pursuant to any other law or rule are not limited or abrogated by his invocation of this statute.

83. The remedies provided by this chapter are in addition to any other remedies that may be provided for under common law or pursuant to any other law or rule.

84. Pursuant to § 8-804, Defendants may not invoke the defense of qualified immunity to avoid liability for this cause of action.

85. Pursuant to § 8-806, Plaintiff is entitled to compensatory and punitive damages, attorney's fees and costs, and an order restraining the Defendants from engaging in further violative conduct.

SECOND CLAIM FOR RELIEF

Malicious Prosecution

Against Defendants Scribner and NYPD Does # 1 – 5 Pursuant to 42 U.S.C. 1983 and Plaintiff's Rights Under the Fourth and Fourteenth Amendments to the United States Constitution and Pursuant to New York State Common Law

86. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

87. Defendants instituted or caused the claim against Plaintiff to be instituted without probable cause and against the weight of available evidence.

88. Defendants provided false information likely to influence a jury or finder of fact to further the criminal prosecution of Plaintiff.

89. Defendants' motive in instituting the suit was malicious, and the prosecution of Plaintiff was terminated in his favor when the Kings County District Attorney dismissed the charges against him.

90. The information and evidence immediately available to and known by Defendants during their investigation is sufficient to rebut the presumption of probable cause in a matter involving the participation of a complaining witness.

91. Defendants knew or should have known that Plaintiff was wrongly charged with the crimes committed by another individual, but nevertheless effectuated his arrest and initiated the charges against him.

92. As a result of Defendants' acts and omissions, Defendants deprived Plaintiffs of his liberty and his federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

93. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

THIRD CLAIM FOR RELIEF

Excessive Force

Against Defendant Does # 6 – 10 Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Under the Fourth and Fourteenth Amendments to the United States Constitution

94. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

95. Defendants' use of force against Plaintiff was unjustified and objectively unreasonable, taking into consideration the facts and circumstances that confronted Defendants.

96. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of his federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

97. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

FOURTH CLAIM FOR RELIEF**Violations of Plaintiff's Due Process Rights
*Against All Defendants Pursuant to 42 U.S.C. § 1983 and the Fifth and Fourteenth
Amendments to the United States Constitution***

98. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

99. Defendants City, Defendant Adams, and Defendant Sewell designed and/or implemented policies and practices pursuant to which those Defendants who ordered, effected, and otherwise participated in seizing Plaintiff and subjected Plaintiff to the violations of his Due Process rights described elsewhere herein.

100. Defendants collectively and individually denied and/or frustrated Plaintiff's Due Process rights and deprived Plaintiff of liberty and property without due process of law.

101. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of his federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

102. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

FIFTH CLAIM FOR RELIEF**False Arrest**

103. By the actions described above, the police officials described above did falsely detain Plaintiff within the meaning of New York common law without reasonable or probable cause, illegally and without a written warrant, and without any right or authority to do so.

104. Plaintiff was conscious of the confinement, which was undertaken without his consent.

105. Defendants levied false allegations against Plaintiff and wrongfully seized, detained, and arrested him.

106. All charges against Plaintiff were terminated in his favor when the criminal matter against him was dismissed in its entirety on April 12, 2023.

SIXTH CLAIM FOR RELIEF

Municipal Liability

Against Defendants City, Adams, and Sewell Pursuant to 42 U.S.C. § 1983 and Monell v. Department of Social Services, 436 U.S. 658 (1978) for Defendants' Violations of Plaintiffs' Rights Under the First, Fourth, and Fourteenth Amendments to the United States Constitution

107. Plaintiff hereby incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

108. The Policymaker Defendants above were responsible for implementing and enforcing policies and procedures on behalf of the Defendant City of New York.

109. The facts pleaded above describe the policies, practices, and customs Defendants subjected the Plaintiff to, including, but not limited to, permitting NYPD members who have a history of misconduct and/or providing false information to continue making arrests and providing information used to prosecute individuals such as Plaintiff.

110. All of the wrongful acts or omissions complained of herein were carried out by the individual named and unnamed police officer defendants pursuant to:

- a. Formal policies, rules, and procedures of Defendant City;
- b. Actions and decisions by Defendant City's policymaking agents including, but not limited to, the Policymaker Defendants named above;

- c. Customs, practices, and usage of the NYPD that are so widespread and pervasive as to constitute *de facto* policies accepted, encouraged, condoned, ratified, sanctioned, and/or enforced by Defendant City, Defendant Adams and Defendant Sewell, and other policymaking officials;
- d. Defendant City's deliberate indifference to Plaintiffs' rights secured by the First, Fourth, and Fourteenth Amendments of the United States Constitution, as evidenced by the City's failures, and the failures of the City's policymaking agents, to train, supervise, and discipline NYPD officers, despite full knowledge of the officers' wrongful acts, as described herein.

111. Accordingly, Plaintiff is entitled to the damages requested in this Complaint.

SEVENTH CLAIM FOR RELIEF

Failure to Train and/or Supervise

Against Defendants City, Adams, and Sewell Pursuant to 42 U.S.C. § 1983 and Monell v. Department of Social Services, 436 U.S. 658 (1978)

112. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

113. Defendant City, and its agents Defendants Adams and Sewell, failed to train and supervise the Defendant NYPD Members.

114. All individual Defendants were employees and/or agents of Defendant City and were acting within the scope of their employment at the time of the conduct, giving rise to Mr. Wilds' injuries.

115. Defendants knew or should have known that Defendant NYPD Members were likely to violate the constitutional rights of individuals in their custody.

116. Defendants know that NYPD Members are certain to regularly encounter situations such as those described herein—including the need to investigate allegations made by a complaining witness or witnesses—through the course of their employment.

117. Defendants knew that there is a history of wrongful conduct in these scenarios by NYPD Members.

118. Defendants also knew that individual NYPD Defendants have a documented history of adverse credibility findings and/or abusive conduct against individuals they encountered during their employment.

119. Defendants further knew that training and/or supervision could ameliorate the potential harms of constitutional violations in these scenarios, including civil rights violations, coerced confessions, and physical and emotional injuries. Nevertheless, Defendants failed to train its agents and/or employees regarding their conduct during the scenarios described herein and further failed to supervise its agents and/or employees when engaged in high-risk contact.

120. By failing to train and supervise Defendant NYPD Members, these Defendants exhibited a conscious disregard and/or deliberate indifference for the risks posed by NYPD members' conduct absent adequate training and supervision.

121. The harms suffered by Plaintiff are the direct result of Defendants' failures.

EIGHTH CLAIM FOR RELIEF

Negligent Screening, Hiring, and Retention
Against Defendants City, Adams, and Sewell Pursuant to 42 U.S.C. § 1983 and Monell v. Department of Social Services, 436 U.S. 658 (1978)

122. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

123. All Defendants were employees and/or agents of Defendant City and were acting within the scope of their employment at the time of the conduct, giving rise to Mr. Wilds' injuries.

124. Defendant City and its agents Defendants Adams and Sewell, knew that the individual Defendants had a propensity for the conduct giving rise to Mr. Wilds' injuries.

125. Defendants failed to adequately screen, hire, or retain employees in consideration of such employees' recognizable propensity for harm.

126. Such documented history of Defendants' willingness to lie and/or misrepresent facts while under oath and/or otherwise cause harm to individuals subjected to interactions with police renders Defendants' conduct both predictable to and preventable by policymaker Defendants.

127. Rather than removing or disciplining NYPD members who have provided non-credible testimony to courts, policymaker Defendants have continued to employ and empower such NYPD members to continue inflicting predictable harm on individuals they interact with, including Plaintiff.

128. Such conduct is so foreseeable as to rise to the level of deliberate indifference.

NINTH CLAIM FOR RELIEF

Breach of Duty to Protect and Failure to Intervene Against All Defendants Pursuant to 42 U.S.C. § 1983

129. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

130. The Defendant City, by its agents, had a special duty to Plaintiff and possessed sufficient knowledge that inaction would lead to the harms suffered by Plaintiff.

131. Defendants witnessed and/or knew of the harmful conduct of fellow Defendants and merely observed and/or unreasonably ignored such conduct against Plaintiff.

132. At no time did any Defendants intervene in the deficient conduct of their colleagues or otherwise fulfill their specialized duty to protect Mr. Wilds.

133. Defendant City and its employees and/or agents breached the existing duty to protect Plaintiff, and such inaction enabled and/or facilitated and/or exacerbated the harms caused by Defendants' conduct and suffered by Plaintiff.

TENTH CLAIM FOR RELIEF

Conspiracy

Against Defendants Scribner and NYPD Does # 1-10 Pursuant to 42 U.S.C. § 1985(3)

134. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

135. Through the conduct described and complained of herein, Defendants conspired to deprive Plaintiff of the equal protection of the laws, or of equal privileges and immunities under the laws.

136. Defendants acted in furtherance of this conspiracy against Plaintiff, and as a result of this conduct, Plaintiff was injured in his person and property and deprived of his constitutional and civil rights.

ELEVENTH CLAIM FOR RELIEF

Failure to Prevent Civil Rights Violations

Against Defendants Scribner and NYPD Does # 1-10 Pursuant to 42 U.S.C. § 1986

137. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

138. Defendants, including individual NYPD Defendants, had knowledge that the wrongs conspired to be done against Plaintiff in violation of 42 U.S.C. § 1985 were to be committed and had the power to prevent and/or aid in preventing the commission of this conduct.

139. Defendants neglected and/or refused to prevent the commission of this conduct, and Plaintiff sustained harm and/or the exacerbation of harm and the deprivation of his rights as a result of this failure.

140. Defendants are liable for all damages caused by the conspiratorial conduct they failed to prevent despite possessing the power to do so.

TWELFTH CLAIM FOR RELIEF

Violations of New York State Law

Pursuant to the New York State Constitution and New York State Common Law

141. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

142. As a result of the conduct described herein, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs, and expenses, and was otherwise damaged and injured.

143. The conduct of the police officials alleged herein occurred while they were on duty and/or in and during the course and scope of their duties and functions as police officials, and/or while they were acting as agents and employees of Defendant City, cloaked with and/or invoking state power and/or authority, and, as a result, Defendant City is liable to the Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

I. Violations of the New York State Constitution

144. Defendants, acting under color of law, violated Plaintiff's rights pursuant to Article I, §§ 6, 8, 9, 11, and 12 of the New York State Constitution.

145. A damages remedy here is necessary to effectuate the purposes of Article I, §§ 6, 8, 9, 11, and 12 of the New York State Constitution, and appropriate to ensure full realizations of Plaintiff's rights under those sections.

II. Fabrication of Evidence

146. Defendants, including NYPD Defendants # 1 – 5 and Defendant Scribner, were investigating officials in this matter. Defendants knowingly fabricated evidence likely to influence a jury and forwarded this information to prosecutors.

147. As a result of this fabrication, Plaintiff suffered deprivations of his life, liberty, and/or property and suffered significant injuries.

148. These deprivations include: Plaintiff's detention in the NYPD's custody, including his time prior to arraignment; Plaintiff's pretrial incarceration at the Crossroads Juvenile Detention Center in Kings County in Defendant City's custody for approximately five (5) days, where he was injured and otherwise violated; and Plaintiff's mandated return to Court on approximately three occasions after his release but during the pendency of the criminal case against him until it was terminated in his favor.

III. Interference With Plaintiff's Right to a Fair Trial

149. Through the conduct described above, Defendants deprived Plaintiff of his right to a fair trial.

IV. Negligence

150. Defendants owed a special duty to Plaintiff and breached this duty through their conduct described herein. Defendants' negligence in fulfilling their duty to Plaintiff resulted in Plaintiff's injuries and they are liable for this conduct and its resulting injuries.

V. Negligent Infliction of Emotional Distress

151. Defendants owed Plaintiff a duty of care and breached this duty of care through the conduct described herein, directly causing the emotional harms, including post-traumatic stress, insomnia, depression, and ongoing anxiety and fear

VI. Negligent Hiring, Training, and Supervision

152. Upon information and belief, Defendant City supervised and trained the police officials described above and did so in a negligent manner resulting in the harms described.

153. At all times relevant herein, Defendants were employed by, and acting in the scope of their employment with, Defendant City. Defendant City should have known that Defendant NYPD Members had a propensity for the conduct causing Plaintiff's injuries.

The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

DEMAND FOR A JURY TRIAL

Plaintiff hereby demands a jury trial of all issues capable of being determined by a jury.

CONCLUSION AND DEMAND FOR JUDGMENT

WHEREFORE, Plaintiff demands judgment against the individual Defendants and the City of New York as follows:

- i. Actual and punitive damages against the individual Defendants in an amount to be determined at trial;
- ii. Actual damages in an amount to be determined at trial against the City of

New York;

- iii. Policy change;
- iv. Statutory attorney's fees, disbursements, and costs of the action pursuant to, inter alia, 42 U.S.C. §1988, the New York City Admin. Code, Ch. 8, Title 8, and New York State common law; and
- v. Such other relief as the Court deems just and proper.

Dated: Brooklyn, New York
July 11, 2024

KAISHIAN & MORTAZAVI LLC

By: 
S. MASOUD MORTAZAVI, ESQ.
55 Washington Street, Ste. 508
Brooklyn, New York 11201
T: (347) 662-2421

ATTORNEY VERIFICATION

I, S. MASOUD MORTAZAVI, an attorney duly admitted to practice before the Eastern District of New York, affirm the following to be true under the penalties of perjury:

1. I am the attorney of record for the Plaintiff.
2. I have read the annexed Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
3. I make this verification because Plaintiff is not currently in the County where I maintain my office.

Dated: Brooklyn, New York
July 11, 2024

By:



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